

ELIZABETH II



1981 CHAPTER xxx

An Act to confer powers on the Great Yarmouth Borough Council with respect to the registration of premises used for the sale of certain articles by way of competitive bidding; to make provision with respect to certain lands on the west bank of the river Yare in the borough; and for other purposes. [31st July 1981]

WHEREAS—

(1) The borough of Great Yarmouth (in this Act called “ the borough ”) is under the management and local government of the Great Yarmouth Borough Council (in this Act called “ the Council ”):

(2) It is expedient that the Council should be empowered to register premises in the borough used for the sale of certain articles by way of competitive bidding:

(3) There are in the borough certain lands on the west bank of the River Yare consisting of such part of the Brush Quay as lies to the north of Pier Walk, the West Quay and Hewett’s Wharf (in this Act called “ the public quay ”) which form part of a

public quay of the Great Yarmouth Port and Haven Commissioners (in this Act called "the commissioners"):

(4) Whilst the ownership of the greater part of the public quay is uncertain, the history of such part over the past 170 years or thereabouts indicates that the Council are best able to claim title to it and no other person is known to claim ownership of or any interest in the greater part of the public quay:

(5) There is adjacent to the public quay other land known as Darby's Hard (in this Act called "Darby's Hard") the ownership of the greater part of which is uncertain, and to which the Council claim title, and no other person is known to claim ownership of or any interest in the greater part of Darby's Hard:

1965 c. 64.

(6) The public quay and a part of Darby's Hard have been registered as common land pursuant to the provisions of the Commons Registration Act 1965 (in this Act called "the Act of 1965") but at the date of such registration they were not subject to rights of common and did not form part of the wasteland of a manor or a town or village green within the meaning of the Act of 1965:

(7) No rights of common have been registered over the public quay or Darby's Hard under the Act of 1965 and no person has been registered as owner of them or of any part thereof under the Act of 1965:

(8) It is expedient that the public quay and Darby's Hard should be developed and used to their full advantage for the benefit of the borough and of the port of Great Yarmouth but it is apprehended that the uncertainty as to the ownership of the greater part of both, the status of the aforesaid part of the Brush Quay, the West Quay and Hewett's Wharf as a public quay and the registration as common land under the Act of 1965 of the public quay and of part of Darby's Hard will hinder or prevent such development and use:

(9) It is therefore expedient that the uncertainty as to the ownership of the greater part of the public quay and of Darby's Hard should be removed, that the public quay should cease to be a public quay and that the register of common land should be amended as in this Act provided:

(10) It is expedient that the other provisions of this Act be enacted:

(11) The purposes of this Act cannot be effected without the authority of Parliament:

(12) A plan of the public quay and of Darby's Hard and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the

occupiers thereof have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officer of the Norfolk County Council, which plan and book of reference are respectively referred to in this Act as the deposited plan and the deposited book of reference:

(13) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 1972 c. 70. have been complied with:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Great Yarmouth Borough Citation and Council Act 1981 and shall come into operation at the expiration of a period of four weeks beginning with the date on which it is passed. commence-
ment.

2. In this Act unless the context otherwise requires—

“ the Act of 1936 ” means the Public Health Act 1936;

“ the borough ” means the borough of Great Yarmouth;

“ contravention ” includes a failure to comply, and
“ contravene ” shall be construed accordingly;

“ the Council ” means the Great Yarmouth Borough Council;

“ premises ” includes land;

“ prescribed articles ” means any plate, plated articles, linen, china, glass, books, prints, furniture, jewellery, articles of household or personal use or ornament or any musical or scientific instrument or apparatus;

“ sale of goods by way of competitive bidding ” means any sale of prescribed articles at which the persons present, or some of them, are invited to buy articles by way of competitive bidding, references to selling goods by way of competitive bidding shall be construed accordingly and “ competitive bidding ” includes any mode of sale whereby prospective purchasers may be enabled to compete for the purchase of articles, whether by way of increasing bids or by the offer of articles to be bid for at successively decreasing prices or otherwise.

Interpretation
and
application.
1936 c. 49.

Prohibition of
unregistered
premises.

3.—(1) It is an offence to sell or permit the sale of goods by way of competitive bidding—

(a) on premises in the borough which are not registered under this Act;

(b) on premises in the borough which are so registered, but in breach of a condition upon which they are so registered.

(2) A person is not guilty of an offence under subsection (1) (a) above—

1980 c. 43.

(a) by virtue of section 44 of the Magistrates' Courts Act 1980 (aiders and abettors); or

(b) consisting of permitting a sale;

unless at the time of the offence he knows that the premises are not registered under this Act.

(3) A person is not guilty of an offence under subsection (1) (b) above if he took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.

(4) If in any case the defence provided under subsection (3) above involves the allegation that the commission of the offence was due to the act or default of another person, the person charged shall not, without leave of the court, be entitled to rely on that defence unless, within a period ending 7 clear days before the hearing, he has served on the prosecutor a notice in writing giving such information as was then in his possession, identifying, or assisting in the identification of that other person.

Application
for
registration.

4.—(1) Application for registration of premises under this Act shall be made to the Council by the occupier of, or a person proposing to occupy, such premises, stating—

(a) the name and address of the applicant;

(b) the address or situation of the premises to which the application relates; and

(c) such other information regarding the premises, the persons concerned or intended to be concerned in the conduct or management of any sale of goods by way of competitive bidding thereon, and the manner in which the premises are to be used as the Council may reasonably require.

(2) With his application for registration under this Act, the applicant shall pay such reasonable fee to cover the expense of the Council in dealing with such applications as the Council may by resolution prescribe.

(3) If any person knowingly or recklessly makes a false statement or omits any material particular in giving information under this section he is guilty of an offence.

5. A person guilty of an offence under either of the last two Penalties. foregoing sections of this Act is liable on summary conviction to a fine not exceeding £500.

6.—(1) The Council shall, on considering an application Registration for the registration of premises under this Act, take into account of premises. the suitability of the premises for conducting the sale of goods by way of competitive bidding having regard to the matters referred to in subsection (2) below.

(2) The Council may refuse to register premises under this Act if they are satisfied that it is reasonable to do so on any of the following grounds:—

- (a) the premises are unsuitable for the use of conducting the sale of goods by way of competitive bidding;
- (b) the intended use of the premises is likely to cause nuisance;
- (c) the premises have been used for the purpose of conducting the sale of goods by way of competitive bidding otherwise than in good faith;
- (d) the applicant or the occupier for the time being of the premises is not a fit and proper person to be concerned in the conduct or management of any sale of goods by way of competitive bidding.

(3) The Council may, on registering premises under this Act, impose such conditions as may be reasonable.

(4) The Council may at any time revoke a registration under this Act on any ground upon which, by subsection (2) above, they are authorised to refuse to register the premises, or if they are satisfied that a condition imposed under subsection (3) above has not been complied with.

(5) Before refusing to register premises under this Act, revoking a registration, or imposing any condition on a registration, the Council shall give to the person applying for registration, or, in the case of a revocation, the person in whose name the premises are registered, an opportunity of appearing before and of being heard by a committee or sub-committee of the Council and, if so required by him, the Council shall within 7 days after their decision give him notice thereof containing a statement of the grounds upon which it was based.

7.—(1) A person aggrieved by a refusal to register premises Appeals. under this Act, or by the revocation thereof, or any condition imposed thereon, may, not later than 21 days after the day on

which notice is given to him under subsection (5) of section 6 (Registration of premises) of this Act, appeal to a magistrates' court.

(2) On any such appeal the court may, by order—

(a) confirm or set aside such refusal or revocation and, on setting aside a refusal or revocation, impose any condition which the Council would have been entitled to impose; or

(b) confirm, vary or set aside any condition imposed on the registration;

and make directions for giving effect to its decision:

Provided that, where conditions have been imposed on a registration by the Council, the court shall not vary any such condition, or impose any new condition, so as to make the conditions more onerous than those imposed by the Council.

(3) Sections 300 to 302 of the Act of 1936 shall apply in respect of appeals to a magistrates' court under this Act.

Cessation of
occupation of
registered
premises.

8. In the event of the occupier of premises registered under this Act dying or ceasing to occupy the premises the registration of the premises then in force shall continue in force (unless previously revoked under this Act) for a period of three months from the date of death or cesser of occupation but shall upon the expiration of that period cease to have effect.

Exemptions.

9.—(1) Notwithstanding anything in section 3 (Prohibition of unregistered premises) of this Act sales by way of competitive bidding of property of the under-mentioned classes may be conducted on premises which are not registered under this Act—

(a) sales at intervals of not less than six months so long as no substantial part of the property was brought onto the premises for the purposes of the sale;

(b) sales of property for the purpose of assisting the funds of any voluntary organisation if the whole, or substantially the whole, of the proceeds of sale are devoted to the funds of the organisation.

(2) In this section "voluntary organisation" means a body the activities of which are carried on otherwise than for profit, but does not include any public or local authority.

Powers of
entry,
inspection and
examination.

10.—(1) An authorised officer of the Council on producing if so required a duly authenticated document showing his authority, or any constable, may at all reasonable times enter upon, inspect and examine any premises which he has reasonable cause to believe

are used, or intended to be used, for the sale of goods by way of competitive bidding for the purpose of ascertaining—

- (a) whether there is, or has been, in or in connection with the premises, a contravention of the provisions of this Act or of any condition imposed on registration under this Act; or
- (b) whether or not circumstances exist which would authorise the Council to take action under this Act.

(2) Subsections (2), (3) and (4) of section 287 of the Act of 1936 shall apply in respect of entry to premises for the purposes of this section as they apply to entry to premises for the purposes of subsection (1) of that section and as so applied shall have effect as if in subsections (2) and (3) after the words “ authorised officer ” there were inserted the words “ or a constable ”.

11. The written consent of the Attorney-General is needed for the laying of an information of an offence created by or under this Act by any person other than the Council or a constable.

Restriction on right to prosecute.

12.—(1) Where an offence under this Act, committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, a director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of the offence.

Liability of directors, etc.

(2) Where the affairs of a body corporate are managed by its members, subsection (1) above shall apply to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

13. The sections of the Act of 1936 mentioned in the Schedule to this Act shall have effect as if references therein to that Act included references to this Act.

Application of general provisions of Act of 1936.

14.—(1) In this section—

“ the Act of 1911 ” means the Great Yarmouth Port and Haven Act 1911;

As to public quay and Darby's Hard. 1911 c. xcix.

“ the Act of 1965 ” means the Commons Registration Act 1965;

1965 c. 64.

“ the commissioners ” means the Great Yarmouth Port and Haven Commissioners;

“Darby’s Hard” means the land adjacent to the public quay delineated on the deposited plan and described in the deposited book of reference and therein numbered 6 to 10;

1897 c. cciv.

“the public quay” means so much of the land described in the Second Schedule to the Great Yarmouth Corporation Act 1897 as by section 95 of the Act of 1911 is deemed to be a public quay of the commissioners and as is delineated on the deposited plan and described in the deposited book of reference and therein numbered 1 to 5.

(2) Upon the commencement of this Act—

- (a) the public quay (other than the land numbered 4 on the deposited plan) and Darby’s Hard (other than the land numbered 6 and 8 on the deposited plan) shall vest in the Council absolutely free from any adverse rights or claims and free from any encumbrances, without further assurance;
- (b) the registration under the Act of 1965 of the public quay and of that part of Darby’s Hard which is so registered shall cease to have effect and the registration authority under the Act of 1965 for the county of Norfolk shall amend accordingly the register of common land maintained by such authority under the Act of 1965;
- (c) the words in section 95 (As to Gorleston Award Lands) of the Act of 1911 “the said portion of the said lands shall be and be deemed to be a public quay within the meaning of the Great Yarmouth Port and Haven Acts 1866 to 1911 and” shall be repealed and the public quay shall cease to be a public quay.

(3) The repeal by subsection (2) (c) above of the words in section 95 of the Act of 1911 shall not affect the duty of the commissioners to make up and pave and at all times maintain and cleanse the public quay for so long as the Council shall require the commissioners to discharge that duty.

SCHEDULE

SECTIONS OF ACT OF 1936 APPLIED

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Great Yarmouth Borough Council Act 1981

CHAPTER xxx

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